STATE OF MINNESOTA	DISTRICT COURT
COUNTY OF HENNEPIN	FOURTH JUDICIAL DISTRICT Case Type: Other Contract
Yibiao Lu and Jie Hu, Plaintiffs, vs. Fire Insurance Exchange, by and through its attorney-in-fact Fire Underwriters Association, doing business as Farmers Insurance, Defendant.	Case Type: Contract Court File No. 27-CV-26-11606 Judge: Jamie Anderson **DEFENDANT'S ANSWERS TO PLAINTIFFS' FIRST SET OF INTERROGATORIES**

TO: Plaintiffs Yibiao Lu and Jie Hu, 17756 George Moran Drive, Eden Prairie, MN 55347:

Defendant Fire Insurance Exchange's (hereinafter "FIE"), as and for its Answers to Interrogatories from Plaintiffs Yibiao Lu and Jie Hu (hereinafter "Plaintiffs"), state under oath as follows:

INTERROGATORY NO. 1: The November 4, 2024 Claim Outcome Letter states, "Our investigation found the condition of the window and components to be from wear/tear as referrenced [sic] in the attached engineer report." For each of The Recorded Conditions, state the basis on which You concluded that condition was not covered in the decision communicated in that letter, including the cause and approximate date You attributed to it, each fact and document You relied on, any prior claim and the estimate line item You contend paid for it, and each provision identified in The Coverage Outcome Attachment that You applied.

ANSWER: FIE objects to Interrogatory No. 1 to the extent that it is overly broad, vague, unduly burdensome, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence (on September 12, 2025, Plaintiffs' claim was resolved via a binding appraisal award "Appraisal Award"), and to the extent that it seeks mental impressions, or legal conclusions. Notwithstanding and without waiving said objections, see FIE's Initial Disclosures and documents produced therewith. The November 4, 2024 letter and the Prieve Report speak for themselves.

INTERROGATORY NO. 2: For line item 1 ("R&R Wood window - casement, 12-23 sf," quantity 2.00 EA) of the estimate within The February 18, 2022 Settlement Package, identify,

based on all information available to You, the window or sash it covers by location and elevation, and state whether it covers a whole window unit or one or more individual sashes.

ANSWER: FIE objects to Interrogatory No. 2 to the extent that it seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via the binding Appraisal Award), to the extent that it seeks mental impressions or legal conclusions, and to the extent that it seeks information regarding a prior claim, seeks information that Plaintiffs currently possess, and is not proportional to the needs of the case. In 2020, the 2 windows that were found to have damage and were included in the February 18, 2022 Settlement Package included the replacement of the main level window to the left of the front entry (3 pieces of glass) and the full replacement of the north facing window (4 pieces of glass) at the rear four season porch.

INTERROGATORY NO. 3: State what You did in response to The Inspection-Record Requests, including the search performed, the custodians and systems searched, when the search was performed and by whom; each of The Brau Inspection Records that exists or has existed, with its type, date, present location and custodian; and, for any of them not provided to Plaintiffs, the reason it was not provided.

ANSWER: FIE objects to Interrogatory No. 3 to the extent that it is overly broad and vague, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via the binding Appraisal Award), seeks information that Plaintiffs currently possess, is not proportional to the needs of the case, to the extent that it seeks mental impressions, or confidential/proprietary information, and because the burden or expense of the discovery sought outweighs its likely benefit. Notwithstanding and without waiving said objections, see documents produced with FIE's Initial Disclosure and those produced herewith.

INTERROGATORY NO. 4: For each of The Denial Letters, state whether any review of the decision — including any supervisory, quality-control, or peer review — was performed before the letter issued and, if so, by whom, when, what it consisted of, and what documents it produced; and identify who authorized each letter to be issued.

ANSWER: FIE objects to Interrogatory No. 4 to the extent that it is overly broad, vague, unduly burdensome, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via the binding Appraisal Award), and to the extent that it seeks mental impressions, legal conclusions, or confidential/proprietary information. Notwithstanding and without waiving said objections, see documents produced with FIE's Initial Disclosure and documents produced herewith.

INTERROGATORY NO. 5: The Answer denies Plaintiffs' allegation at paragraph 33 of the Complaint that The Appraisal Award does not state actual value and loss separately to each item. For each of The Appraisal Items, state the actual value and the loss You contend The Appraisal Award states and where on The Appraisal Award each appears — including, for the item

"Windows F1.7 B1.2," whether those values were determined separately for each of the two windows and the amount attributable to each; and state whether You contend The Appraisal Award states separately actual value and loss to each item within the meaning of Minn. Stat. § 65A.01, subd. 3.

ANSWER: FIE objects to Interrogatory No. 5 to the extent that it is cumulative, duplicative, not relevant to the Plaintiffs' claim (Plaintiffs claim was resolved via the binding Appraisal Award), seeks mental impressions, legal conclusions, or work product. The binding Appraisal Award speaks for itself. Plaintiffs repeatedly acknowledge that it is a binding Appraisal Award in their Complaint. The Demand for Appraisal included three items to be considered by the appraisal panel: 1) Windows; 2) Siding (repaint); and 3) Siding (R&R). As related to the Windows item to be considered by the appraisal panel, the appraisers identified the two windows they determined were damaged from hail, set the amount of loss for the two damaged windows, including the actual cash value and replacement cost as outlined on the Appraisal Award and required by the Policy. The Appraisal Award speaks for itself.

INTERROGATORY NO. 6: Describe what You did with each of The Vendor Reports before relying on it in The Claim, including each person involved and what each did, each document created, and any written policy or procedure that applied to those steps, identified by title and date.

ANSWER: FIE objects to Interrogatory No. 6 to the extent that it is overly broad and vague, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via the binding Appraisal Award), and to the extent that it seeks confidential/proprietary information. Notwithstanding and without waiving said objections, see documents produced with FIE's Initial Disclosure and documents produced herewith.

INTERROGATORY NO. 7: State each fact supporting Your First Affirmative Defense in The Answer, which alleges that "pursuant to Rule 12, Minn. R. Civ. P., there exists a lack of jurisdiction over Defendant FIE and Plaintiffs have failed to state a claim upon which relief can be granted," including whether the jurisdictional allegation refers to subject-matter jurisdiction, personal jurisdiction, or both, and each count of the Complaint to which the failure-to-state allegation is directed; and, if You contend that any person should be a defendant in this action in place of or in addition to Fire Insurance Exchange, or that Fire Insurance Exchange is misnamed or misdescribed in the caption, identify that person by legal name, form, and state of organization.

ANSWER: FIE objects to Interrogatory No. 7 to the extent that it seeks information protected by the attorney client or work product privilege, seeks mental impressions or legal conclusions, and is overly broad, vague, unduly burdensome. The Plaintiffs made a claim to FIE on or about August 13, 2024, alleging hail damage to their windows. Plaintiffs informed FIE that they had water leakage in the interior of their home at the windows. On August 13, 2024, Plaintiffs did not report or make any other claim for damages at their home other than hail damage to windows. After the Plaintiffs' claim was denied, Plaintiffs demanded appraisal requesting that the appraisal panel consider windows, siding (repaint) and siding

(remove and replace). An Appraisal Award was issued and signed by Plaintiffs' appraiser and the umpire. The Appraisal Award set the amount of the Plaintiffs' loss and is binding.

INTERROGATORY NO. 8: Identify each person known to You to have knowledge of facts concerning the Handling of The Claim or The 2020 Claim, any inspection of The Property, The Appraisal, or The Denial Letters, whether or not that person is presently employed by You, and state the subject matter of each person's knowledge and the period of that person's involvement. This interrogatory is not limited to persons You may use to support Your claims or defenses within the meaning of Minn. R. Civ. P. 26.01(a)(1)(A).

ANSWER: FIE objects to Interrogatory No. 8 to the extent that it is cumulative, duplicative, not relevant to the Plaintiffs' claim (Plaintiffs claim was resolved via the binding Appraisal Award), seeks information that Plaintiffs currently possess, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence. Notwithstanding and without waiving said objections, see FIE's Initial Disclosures and documents produced herewith.

INTERROGATORY NO. 9: Identify each document or other information concerning The Claim, The 2020 Claim, or The Property — including The Brau Inspection Records — that You contend no longer exists or cannot be located, including for each its type, date, author, and subject matter, when and how it ceased to exist or became unlocatable, who authorized or caused that, each person who has had custody of it, and any records-retention policy or schedule under which it was not preserved.

ANSWER: FIE objects to Interrogatory No. 9 to the extent that it is cumulative, duplicative, to the extent that it is overly broad and vague, is unduly burdensome, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via the binding Appraisal Award), and to the extent that it seeks confidential/proprietary information. FIE also objects to Interrogatory No. 9 to the extent it implies that FIE contends that documents no longer exist.

INTERROGATORY NO. 10: State what You did with each of The 2025 Submissions, including each person involved, when, the conclusion reached, each document recording it, whether it was considered in any decision on The Claim, and, if nothing was done, why.

ANSWER: FIE objects to Interrogatory No. 10 to the extent that it is cumulative, duplicative, to the extent that Plaintiffs already possess the requested information, to the extent that it is overly broad and vague, is unduly burdensome, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs claim was resolved via the binding Appraisal Award). Notwithstanding and without waiving said objections, see documents produced with FIE's Initial Disclosure and documents produced herewith.

INTERROGATORY NO. 11: As to Your assertion in The Answer, responding to paragraph 14 of the Complaint, that Plaintiffs "attempted to direct the claim-handling process by adamantly

advising Hancock Claims Consultants that the only thing that needed to be inspected was the windows on the inside where they were leaking," state who made and who received that statement, when and how, including each document recording it, the person who first recorded it, and whether Hancock's August 29, 2024 inspection was limited as a result and, if so, what was not inspected; and state whether You contend that statement was a basis for Your September 3, 2024 statement that "[t]here were no other damages observed."

ANSWER: FIE objects to Interrogatory No. 11 to the extent that it to the extent that it is overly broad and vague, to the extent that it seeks mental impressions or legal conclusions, is unduly burdensome, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via the binding Appraisal Award). Notwithstanding and without waiving said objections, please see FIE's Initial Disclosures, documents produced herewith, and the two sets of photographs from Hancock Claims Consultants, which demonstrate that there were initially indoor photos taken and a second set of photographs which included the entire exterior.

INTERROGATORY NO. 12: State the date You contend You first anticipated litigation concerning The Claim, identifying who made that determination, what prompted it, and the first document in Your claim file that You contend was prepared in anticipation of litigation or for trial within the meaning of Minn. R. Civ. P. 26.02(d); and state the date any litigation hold or preservation instruction concerning The Claim or this action was issued, to whom it was directed, and what it directed to be preserved.

ANSWER: FIE objects to Interrogatory No. 12 to the extent that it to the extent that it is overly broad and vague, to the extent that it seeks mental impressions or legal conclusions, is unduly burdensome, seeks discovery that is not proportional to the needs of the case, seeks irrelevant discovery that is not likely to lead to admissible evidence (Plaintiffs' claim was resolved via the binding Appraisal Award).

AS TO OBJECTIONS:

KENNEDY LAW FIRM P.C.

Dated: October 20, 2026

By: /s/ Mary J. Baskfield
Kevin J. Kennedy (#193872)
Mary J. Baskfield (#0314572)
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Counsel for Defendant Fire Insurance Exchange

STATE OF MINNESOTA)
) ss.
COUNTY OF DAKOTA)

NIC BRAU, being duly sworn, deposes and says that Defendant Fire Insurance Exchange is a Defendant in the above-entitled case, and that he/she verifies the foregoing answers to interrogatories and is duly authorized to do so; that certain of the matters stated in the foregoing answers to interrogatories are not within the personal knowledge of the deponent, and; that the facts stated in said answers have been assembled by Defendant and counsel for Defendant, and deponent is informed by said counsel that the facts stated in said answers are true.

Pursuant to Minn. Stat. § 358.116, I declare under penalty of perjury that everything I have stated in this document is true and correct.

Dated: October 20, 2026

FIRE INSURANCE EXCHANGE

BY: Nic Brau
Nic Brau (Oct 20, 2026 12:02:38 CDT)
NIC BRAU

Signature Page for Defendant Fire Insurance Exchange's Answers to Plaintiffs' Interrogatories in Court File No. 27-CV-26-11606